

Mohammad Salim Samani v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 May 2015 · Crl. Misc. W.P. No. 11034 of 2015 (All.) · Criminal Misc. Writ Petition No. 11034 of 2015 · **s.135 FIR not quashed; CrPC 41/41-A on arrest; compounding open**

HEADNOTE

Writ to quash a Section 135 Electricity Act FIR refused because the FIR disclosed a cognizable offence. If arrest is to be made for an offence not entailing a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, compounding may be sought under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003.

FACTUAL SUMMARY

Mohammad Salim Samani and another filed a criminal miscellaneous writ petition in the Allahabad High Court seeking to quash FIR dated 16 April 2015, Case Crime No. 167 of 2015, registered under Section 135 of the Electricity Act at Police Station Khekra, District Baghpat. Arrest had not been made. They submitted that the alleged offence could not attract a sentence exceeding seven years and that the police should not mechanically arrest them in breach of Sections 41(1)(b) and 41-A Cr.P.C.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing of theft FIR

HOLDING

An FIR registered under Section 135 of the Electricity Act that discloses a cognizable offence is not liable to be quashed. If arrest is to be effectuated and the offence will not entail a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. ¶ 3,6

INTERPLAY · EA2003::152

compounding of theft offence

HOLDING

If the alleged Section 135 offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003. The Court did not itself compound the offence or stay the FIR on that score. ¶ 5

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Writ to quash a Section 135 Electricity Act FIR refused because the FIR disclosed a cognizable offence. If arrest is to be made for an offence not entailing a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C.. ¶ 3,6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS COMPOUNDABLE, AND COMPOUNDING ITSELF

Liberty only: petitioners may seek compounding under the Supply Code, 2005 and s.152 if the offence is compoundable.

¶ 5

